

discussed, Plaintiff has sufficiently alleged program level inaccessibility for pleading purposes.

Next Defendant argues Plaintiff cannot plead in the alternative that the sidewalks were altered after January 26, 1992 thus potentially implicating the stricter facility standards. Defendant cites no authority for this argument and it contradicts the general principle permitting alternative pleading. Again, whether the sidewalk was altered is information we would expect to be in the City's possession.

Lastly, Defendant contends the cause of action is subject to a special demurrer for uncertainty because it cannot be ascertained whether the program access standard or the facility access standard applies. Demurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.*, (2019) 38 Cal. App. 5th 677, 695)

This is not an incomprehensible pleading. As discussed, Plaintiff is permitted to plead in the alternative.

Sixth Cause of Action (Disabled Persons Act)

The demurrer is overruled.

Because the Court has found the allegations supporting the ADA claim are sufficient for pleading purposes, the demurrer to the Disabled Person's Act claim fails.

As to the proposed Second Amended Complaint lodged with the opposition, Plaintiff of course is free to file a motion for leave to amend if he so desires.

Defendant shall file and serve an answer within 20 days' notice of this order.

Plaintiff shall prepare and submit a form of order consistent with this ruling within 2 weeks.

5. 25CV01590 Quality Loan Service Corp v. All Claimants to Surplus Funds et al

EVENT: Wilmington Trust, National as Trustee of Bravo Residential Funding Trust 2019-NQM2'S Claim to Interpled Funds

The Court has reviewed the Wilmington Trust, National as Trustee of Bravo Residential Funding Trust 2019-NQM2'S Claim to Interpled Funds. The claim appears to be in order and the claimant appears to have a priority claim over a portion of the funds. The claimant's petition is granted. The clerk is directed to disburse \$41,730.51 payable to Loan Acquisition Trust 2017-RPL1, c/o McCarthy & Holthus, LLP Attn: Surplus Funds Department and mailed to 2763 Camino Del Rio South, Suite 100, Sand Diego, CA 92108.

Claimant shall prepare the form of order.

6. 25CV02166 AAA Properties v. Calagna, Samantha

EVENT: Motion to be Relieved as Counsel (Plaintiff's Counsel)

Motion to be Relieved as Counsel is GRANTED. The Court will sign the proposed order. The order will become effective upon the filing of a proof of service demonstrating Plaintiff was served with the order.

7-10. 25CV05073 Marin, Armando v. California Automobile Insurance Company

EVENT: (1) Defendant's Motion to Compel Responses to Form Interrogatories, Set One; Request for Monetary Sanctions Against Plaintiff and/or Counsel

(2) Defendant's Motion to Compel Responses to Special Interrogatories, Set One; Request for Monetary Sanctions Against Plaintiff and/or Counsel;

(3) Defendant's Motion to Compel Responses to Request for Production of Documents, Set One; Request for Monetary Sanctions Against Plaintiff and/or Counsel;

(4) Defendant's Motion for Order Establishing Admissions; Request for Monetary Sanctions Against Plaintiff and/or Counsel;

Defendant's discovery motions are granted. The admissions are deemed admitted. Plaintiff shall provide responses without objection to the other discovery requests within 10 days. Sanctions are awarded against Plaintiff (but not against Plaintiff's counsel) in the total amount of \$3,500 (\$875 per motion). The Court will sign the proposed orders with these modifications.